

**BEFORE THE
FEDERAL MARITIME COMMISSION**

MSRF Inc.	)	
	)	
<i>Complainant,</i>	)	DOCKET NO. 22-20
	)	
v.	)	
	)	
HMM Company Limited,	)	
<i>Respondent.</i>	)	
	)	

**RESPONDENT’S REVISED MOTION FOR
CONFIDENTIAL TREATMENT OF CERTAIN MATERIALS ON CONSENT**

Pursuant to 46 C.F.R. §§502.69, 502.141(j)(1) and 502.5(b), Respondent HMM Company Limited (“HMM”) hereby files its revised motion for confidential treatment of certain materials (“Revised Motion for Confidential Treatment”) included with or referred to in Respondent’s Brief, Respondent’s Proposed Findings of Fact, Respondent’s Reply to Complainant’s Proposed Findings of Fact, and Respondent’s Appendix (together, the “Brief”).¹

On January 4, 2023, the Presiding Officer issued an Order Entering Confidentiality Stipulation and Protective Order (“Confidentiality Order”), providing for the confidential treatment of certain materials produced in discovery in this proceeding (“Confidential Information”). The Confidentiality Order contemplates the use of confidential material in connection with briefing on the merits and requires that Confidential Information disclosed to the Commission and the Administrative Law Judge in papers, including exhibits, shall be labeled confidential in accordance with 46 CFR §502.5 and that “(t)he ALJ shall order an appropriate procedure for the use of the Confidential Information at or during the course of the Proceeding

¹ Defined terms used in the Brief are also used here.

pursuant to 46 CFR §502.141(j)(1).” During discovery, each party accordingly designated certain materials as confidential.

Pursuant to Rule 502.5(b), Respondent filed with its Brief and corresponding filings a Confidential-Restricted version which designated confidential material that was so marked by both Complainant and Respondent. Respondent also filed a Public Version wherein this confidential material was redacted. However, the vast majority of the content in the Brief which was marked confidential was so designated by Complainant during the course of discovery, including the transcript material and all of the email correspondence that was redacted in Respondent’s Appendix. HMM does not have a position on whether the material designated by Complainant should be accorded confidential treatment, but for its part HMM does not seek to designate any transcript material or correspondence as confidential. The only document HMM seeks to designate as confidential is the Service Contract because of its commercial sensitivity, including rate details and other terms that are unique to that agreement.

By Order dated May 26, 2023 (the “May 26 Order”), the Presiding Officer directed the parties to curtail their use of confidential designations. As directed by the May 26 Order, Respondent now files revised Confidential and Public Versions of the documents designated by HMM as confidential, which include those materials identified by Complainant as still confidential following the May 26, 2023 Order.

Pursuant to the May 26 Order, HMM respectfully moves that the two documents HMM has designated as confidential, the Service Contract and related rate column in Respondent’s summary table, RX0007-0200 and RX0325 respectively, be treated as confidential for the following reasons:

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 9th day of June, 2023, a true and correct copy of the foregoing Motion for Confidential Treatment was served via electronic mail on:

R. Kevin Williams, Esq.
Mark R. Ludwikowski, Esq.
Mark J. Andrews, Esq.
Clark Hill PLC
130 E. Randolph Street, Suite 3900
Chicago, IL 60601
Counsel for Complainant MSRF, Inc.

/s/
Neil A. Quartaro